

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Filed:

FREDY LLANOS

INDEX NO.

Plaintiff(s),

Plaintiff designates Queens
County as the place of trial.

-against-

S U M M O N S

SHAWN ZOUGARHI, HUFF 'N' PUFF INC, JOHN DOE 1

through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the persons who emerged from 25-83 Steinway Street, Astoria, NY 11103 and assaulted and/or battered the plaintiff at or near said location on or about April 14, 2017), THE CITY OF NEW YORK, New York City Police Department Officer ("P.O.") BRIAN BAYLEY (Tax ID No. 960219) individually and in his official capacity, and P.O. JOHN DOE 1 through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the New York City Police Department Officers who arrested and/or participated in the arrest of the plaintiff on or about April 14, 2017),

The basis of venue is the
Location of Incident
pursuant to CPLR §504(3)

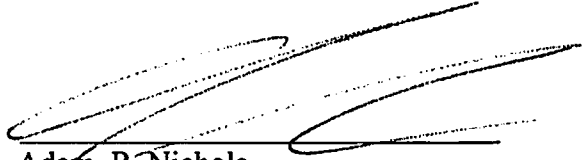
Defendant(s).

To the above named Defendants:

YOU ARE HISEBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: March 20, 2018
Astoria, NY


Adam R. Nichols,
Sacco & Fillas LLP

Attorney for Plaintiff(s)
Fredy Llanos
31-19 Newtown Avenue
Seventh Floor
Astoria, NY 11102
(718) 746-3440

DEFENDANT(S)

SHAWN ZOUGARHI
25-83 Steinway Street
Astoria, NY 11103

HUFF 'N' PUFF INC
25-83 Steinway Street
Astoria, NY 11103

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

New York City Police Department Officer ("P.O.") BRIAN BAYLEY (Tax ID No. 960219)
34-16 Astoria Boulevard
Astoria, NY 11103

SUPREME COURT OF THE STATE OF NEW YORK
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FREDY LLANOS

Plaintiff(s),

INDEX NO.

-against-

SHAWN ZOUGARHI, HUFF 'N' PUFF INC, JOHN DOE 1 through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the persons who emerged from 25-83 Steinway Street, Astoria, NY 11103 and assaulted and/or battered the plaintiff at or near said location on or about April 14, 2017), THE CITY OF NEW YORK, New York City Police Department Officer ("P.O.") BRIAN BAYLEY (Tax ID No. 960219) individually and in his official capacity, and P.O. JOHN DOE 1 through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the New York City Police Department Officers who arrested and/or participated in the arrest of the plaintiff on or about April 14, 2017),

VERIFIED COMPLAINT

Defendant(s).

Plaintiff(s), by him attorneys, **SACCO & FILLAS, LLP**, as and for her Verified Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, FREDY LLANOS, at all times herein mentioned was and still is a resident of the County of Queens, State of New York.
2. At all times herein mentioned, defendant, SHAWN ZOUGARHI, was and still is a resident of the County of Queens, State of New York.
3. At all times herein mentioned, defendant, HUFF 'N' PUFF INC, was and still is a domestic business corporation organized and existing under the laws of the State of New York, with its principal place of business situated in the State of New York.
4. The defendant, HUFF 'N' PUFF INC, at all times herein mentioned conducted and carried on business in the County of Queens and the State of New York.

5. At all times herein mentioned, defendant, HUFF 'N' PUFF INC, transacted business within the State of New York.

6. At all times herein mentioned, defendant, HUFF 'N' PUFF INC, derived substantial revenue from goods used or consumed or services rendered in the State of New York.

7. At all times herein mentioned, defendant, HUFF 'N' PUFF INC, expected or should reasonably have expected its acts to have consequences in the State of New York.

8. At all times herein mentioned, defendant, HUFF 'N' PUFF INC, derived substantial revenue from interstate or international commerce.

9. At all times herein mentioned, defendant, HUFF 'N' PUFF INC, operated a place of business open to the general public, known as "Crystal Lounge" and located at 25-83 Steinway Street, Astoria, NY 11103.

10. At all times herein mentioned, defendant, SHAWN ZOUGARHI, was and still is the owner, officer, employee, agent, servant, representative, and/or sole shareholder of defendant, HUFF 'N' PUFF INC.

11. At all times herein mentioned, defendant, SHAWN ZOUGARHI, did and still does exercise complete domination and control over defendant, HUFF 'N' PUFF INC.

12. At all times herein mentioned, defendant, SHAWN ZOUGARHI, did and still does abuse the corporate form of defendant, HUFF 'N' PUFF, for the purpose of committing and/or furthering the willful, wrongful, fraudulent, and/or malicious acts alleged herein.

13. At all times herein mentioned, defendants, JOHN DOE 1 through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the persons who emerged from 25-83 Steinway Street, Astoria, NY 11103 and assaulted and/or battered the plaintiff at or near said location on or about April 14, 2017), were and still are residents of the State of New York.

14. At all times herein mentioned, defendants, JOHN DOE 1 through 3, were and still are employees, agents, servants, and/or representatives of defendant, HUFF 'N' PUFF INC.

15. At all times herein mentioned, defendants, JOHN DOE 1 through 3, acted within the scope of their employment, agency, service, and/or representation of defendant, HUFF 'N' PUFF INC.

16. At all times herein mentioned, defendant, THE CITY OF NEW YORK, was and still is a municipal corporation and/or entity duly organized and existing under and by virtue of the laws of the State of New York.

17. At all times herein mentioned, defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly organized public authority and/or police department, authorized to perform law enforcement and all functions of a police department under the New York State Criminal Procedure Law and acting under the direction and supervision of defendant, THE CITY OF NEW YORK.

18. At all times herein mentioned, defendant, THE CITY OF NEW YORK, assumed the risks incidental to the maintenance of a police force, to the employment of police officers, and to the public consumers of the services provided by the New York City Police Department.

19. At all times herein mentioned, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, were duly sworn police officers of the New York City Police Department, acting under the direction and supervision of the New York City Police Department and/or THE CITY OF NEW YORK and according to their official duties.

20. At all times herein mentioned, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, acted under color of state law, with the power and authority vested in them as police officers and incidental to the lawful pursuit of their duties as such, and are sued herein in their individual and official capacities.

21. The true names and shield numbers of defendants, P.O. JOHN DOE 1 through 3, are not currently known to the plaintiff, other than that it is known that all of these defendants are employees, agents, servants, representatives, and/or officers of New York City Police Department and/or THE CITY OF NEW YORK, and are entitled to representation in this

action the New York City Law Department pursuant to General Municipal Law §50-k and, as such, the New York City Law Department is hereby put on notice that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants becomes known to the plaintiff and that the New York City Law Department should immediately being preparing their defense in this action.

22. On or about May 30, 2017, in accordance with the General Municipal Law, a Notice of Claim was served upon defendants, THE CITY OF NEW YORK and P.O. BRIAN BAYLEY.

23. On or about December 18, 2017, in accordance with the General Municipal Law, a Notice of Claim was served upon defendants, THE CITY OF NEW YORK and P.O. BRIAN BAYLEY.

24. Such Notices of Claim was served within 90 days after the causes of action herein occurred, in accordance with the General Municipal Law.

25. The aforementioned Notices of Claim, sworn to by the claimant, set forth the name and post office address of the claimant and his attorney, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of injury so far as practical; at least 30 days have elapsed since the service of said Notice of Claim and adjustment or payment thereof has been neglected or refused.

26. On or about October 18, 2017, plaintiff, FREDY LLANOS, appeared for an oral examination conducted on behalf of defendant, THE CITY OF NEW YORK and/or P.O. BRIAN BAYLEY, by Colon & Peguero LLP, 575 Eighth Avenue, Suite 1808, New York, NY 10018.

27. No oral examination was demanded pursuant to General Municipal Law §50-h as to the Notice of Claim served on or about December 18, 2017.

28. This action has been commenced within one year and ninety days from the date of the happening of the incident(s) complained of herein.

29. The causes of action herein arose in the County of Queens, State of New York.

FACTUAL BACKGROUND

30. On or about April 14, 2017, while plaintiff was lawfully present on the sidewalk at or near "Crystal Lounge", defendants, SHAWN ZOUGARHI and/or JOHN DOE 1 through 3, caused physical injury to the plaintiff.

31. On or about April 14, 2017, plaintiff was thereafter forcibly removed against his will and without his consent and arrested by defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, acting as employees, agents, servants, representatives, and/or officers of the New York City Police Department and/or THE CITY OF NEW YORK.

32. On or about April 14, 2017, plaintiff was thereafter transported against his will and without his consent by defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, to the 114th Precinct of the New York City Police Department and Mount Sinai Hospital where he was searched, detained, and deprived of his liberty.

33. On or about April 14, 2017, defendant, P.O. BRIAN BAYLEY, completed and/or caused to be completed a Desk Appearance Ticket bearing Serial No. 114-16613, and alleging the crime of New York State Penal Law §165.15.

34. At all times herein mentioned, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

35. At all times herein mentioned, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, had no warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason to stop and/or arrest the plaintiff.

36. At all times herein mentioned, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, intentionally placed the plaintiff under arrest without a warrant, probable cause, just cause, provocation, exigent circumstance, or other lawful reason.

37. A reasonable person or police officer should have known that plaintiff had committed no crime.

38. At all times herein mentioned, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, had actual knowledge that plaintiff had committed no crime and acted with intentional, malicious, careless, reckless, and/or grossly negligent disregard for the truth in falsely accusing the plaintiff of crimes under the New York State Penal Law.

39. On or about October 12, 2017, all charges against the plaintiff (New York State Penal Law §110-120, §165.15, and §240.26) were dismissed.

40. As a direct and proximate result of the aforesaid acts of defendants, the plaintiff sustained painful, permanent, serious, severe, and physically and emotionally disabling injuries to diverse parts of his body and limbs, causing pain and suffering and severe emotional trauma, requiring extensive medical care and treatment, disabling him from his usual and customary activities, preventing him from enjoying his normal station in life, and causing him to become sick, sore, lame, and disabled.

41. As a direct and proximate result of the aforesaid acts of defendants, the plaintiff was compelled to and did necessarily require extensive medical care and treatment and did necessarily pay and become liable.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
ASSAULT**

42. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "41" with the same force as if alleged in full herein.

43. The physical conduct of defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, which was intentional, placed plaintiff in reasonable fear, alarm, and imminent apprehension of harmful, offensive, and nonconsensual bodily contact.

44. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional

distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

45. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

46. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
BATTERY**

47. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "46" with the same force as if alleged in full herein.

48. The physical conduct of defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, which was intentional, resulted in harmful, offensive, and nonconsensual bodily contact with the plaintiff.

49. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

50. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

51. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR AN THIRD CAUSE OF ACTION FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

52. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "51" with the same force as if alleged in full herein.

53. Defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, had a duty to refrain from causing the false arrest of the plaintiff, the false imprisonment of the plaintiff, abusing the criminal law process, maliciously prosecuting the plaintiff, and otherwise violating the plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

54. By the acts and/or omissions described herein, defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, breached their duty to the plaintiff, unreasonably endangering the physical safety of the plaintiff and causing the plaintiff to fear for his physical safety.

55. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

56. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

57. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "56" with the same force as if alleged in full herein.

58. The acts and/or omissions described herein were so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.

59. Defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, acted with intent to

cause and/or disregard of a substantial probability of causing severe emotional distress to plaintiff.

60. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

61. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
NEGLIGENCE**

62. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "61" with the same force as if alleged in full herein.

63. The acts of defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, caused an unintentional and/or unexpected injury, harm, and/or degree of injury or harm to the plaintiff.

64. The injuries sustained by the plaintiff were due to the negligence, recklessness, and/or carelessness of the defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3.

65. By the acts described herein, defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, breached their duty to the plaintiff, unreasonably endangering the physical safety of the plaintiff and causing him to fear for his physical safety and well-being.

66. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

67. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the

State of New York.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
ABUSE OF PROCESS**

68. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "67" with the same force as if alleged in full herein.

69. By the acts and/or omissions described herein, defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, employed regularly issued criminal process against plaintiff compelling the performance or forbearance of prescribed acts.

70. The purpose of activating this process was with malice and/or the intent to harm the plaintiff, without any excuse or justification.

71. The defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, misused the criminal process in a perverted manner for the purpose of obtaining a collateral objective or corresponding detriment to the plaintiff which was outside the legitimate ends of the process.

72. By the acts and/or omissions described herein, defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

73. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

74. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

75. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION**

76. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "75" with the same force as if alleged in full herein.

77. By the acts and/or omissions described herein, defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, without probable cause for arrest or prosecution, directly, actively, and maliciously caused a criminal proceeding to be initiated and continued against plaintiff for the purpose of harming and/or punishing the plaintiff for illegitimate reasons.

78. The plaintiff was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by SHAWN ZOUGARHI and JOHN DOE 1 through 3.

79. The charges were lodged against the plaintiff without probable cause or justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject the plaintiff to a possible term of imprisonment.

80. The criminal proceeding ultimately resulted in a termination in plaintiff's favor.

81. The defendants' conduct constituted malicious prosecution on the part of the defendants against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.

82. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

83. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary

and/or punitive damages against the defendants.

84. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING, SUPERVISION, AND RETENTION**

85. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "84" with the same force as if alleged in full herein.

86. Defendant, HUFF 'N' PUFF INC, hired, trained, supervised, and retained defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, despite their known and foreseeable propensity for the injury-causing and tortious conduct alleged herein.

87. Defendant, HUFF 'N' PUFF INC, failed to exercise reasonable care in hiring defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3.

88. Defendant, HUFF 'N' PUFF INC, failed to exercise reasonable care in training defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3.

89. Defendant, HUFF 'N' PUFF INC, failed to exercise reasonable care in supervising defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3.

90. Defendant, HUFF 'N' PUFF INC, failed to exercise reasonable care in retaining defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3.

91. Defendant, HUFF 'N' PUFF INC, knew of the defendants', SHAWN ZOUGARHI and JOHN DOE 1 through 3, propensity for the injury-causing and tortious conduct alleged herein.

92. Defendant, HUFF 'N' PUFF INC, should have known of the propensity of defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, for the injury-causing and tortious conduct alleged herein had the defendant, HUFF 'N' PUFF INC, conducted an adequate hiring, training, supervision, and retention procedure.

93. Defendant, HUFF 'N' PUFF INC, failed to investigate defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, despite knowledge of facts that would lead a reasonably prudent person to investigate these defendants.

94. Defendant, HUFF 'N' PUFF INC, failed to take corrective action against defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, despite knowledge of facts that would lead a reasonably prudent person to take corrective action against these defendants.

95. Defendant, HUFF 'N' PUFF INC, failed to reasonably control or monitor defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, despite knowledge of facts that would lead a reasonably prudent person to control or monitor these defendants.

96. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

97. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR AN NINTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR / VICARIOUS LIABILITY**

98. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "97" with the same force as if alleged in full herein.

99. Defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, acted in furtherance of and within the course and scope of their duties and functions as employees, agents, servants, representatives, and/or officers of HUFF 'N' PUFF INC and otherwise performed and engaged in conduct incidental to the performance of their lawful functions as police officers.

100. Defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, acted in furtherance of

their employment with HUFF 'N' PUFF INC.

101. Defendants, SHAWN ZOUGARHI and JOHN DOE 1 through 3, acted pursuant to the customs, usages, practices, procedures, and/or rules of HUFF 'N' PUFF INC, all under the supervision of ranking officers.

102. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

103. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
DEPRIVATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. §1983**

104. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "103" with the same force as if alleged in full herein.

105. Defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, under color of law, subjected the plaintiff to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. §1983, thereby depriving plaintiff of his rights, privileges, and immunities secured by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

106. Plaintiff was deprived of his right to be free from the unreasonable seizure of his person.

107. Plaintiff was deprived of his right to be free from arrest without probable cause.

108. Plaintiff was deprived of his right to be free from false imprisonment and detention without a warrant, probable cause, just cause, provocation, exigent circumstances, or other lawful reason.

109. Plaintiff was deprived of his right to be free from the lodging of false charges against him.

110. Plaintiff was deprived of his right to be free from having evidence against him fabricated.

111. Plaintiff was deprived of his right to be free from malicious prosecution without probable cause instituted with malice and ultimately resulting in a termination in plaintiff's favor.

112. Plaintiff was deprived of his right to be free from abuse of process.

113. Plaintiff was deprived of his right to be free from deprivation of liberty without due process of law.

114. Plaintiff was deprived of his right to equal protection, privileges, and immunities under the law.

115. Plaintiff was aware of the foregoing rights and did not consent to the deprivation of same.

116. The acts and/or omissions described herein were carried out by defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, in furtherance of and within the course and scope of their duties and functions as employees, agents, servants, representatives, and/or officers of the New York City Police Department and/or THE CITY OF NEW YORK and with the actual and/or apparent authority attendant thereto.

117. The acts and/or omissions described herein were carried out by defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, pursuant to the customs, usages, practices, procedures, and/or rules of the New York City Police Department and/or THE CITY OF NEW YORK, all under the supervision of ranking officers of said police department.

118. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to

reputation, loss of income, and was otherwise damaged and injured.

119. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

120. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
FOR FALSE ARREST

121. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "120" with the same force as if alleged in full herein.

122. By the acts and/or omissions described herein, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, falsely and intentionally arrested the plaintiff without a warrant, probable cause, just cause, provocation, exigent circumstances, or other lawful reason.

123. The arrest of the plaintiff was objectively unreasonable and in violation of plaintiff's Constitutional rights.

124. The plaintiff was aware of his arrest and confinement as described herein, he did not consent to his arrest and confinement, and his arrest and confinement was not privileged by any law or authority.

125. By the acts and/or omissions described herein, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

126. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

127. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

128. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT**

129. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "128" with the same force as if alleged in full herein.

130. By the acts and/or omissions described herein, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, falsely and intentionally imprisoned the plaintiff without a warrant, probable cause, just cause, provocation, exigent circumstances, or other lawful reason.

131. The imprisonment of the plaintiff was objectively unreasonable and in violation of plaintiff's Constitutional rights.

132. The plaintiff was aware of his imprisonment as described herein, he did not consent to his imprisonment, and his imprisonment was not privileged by any law or authority.

133. By the acts and/or omissions described herein, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

134. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

135. Due to the reckless, malicious, willful, wanton, and intentional nature of the

foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

136. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
ASSAULT**

137. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "136" with the same force as if alleged in full herein.

138. The physical conduct of defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, which was intentional, placed plaintiff in reasonable fear, alarm, and imminent apprehension of harmful, offensive, and nonconsensual bodily contact.

139. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

140. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

141. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR
BATTERY**

142. Plaintiff repeats and realleges each and every allegation contained in paragraphs

"1" through "141" with the same force as if alleged in full herein.

143. The of defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, which was intentional, resulted in harmful, offensive, and nonconsensual bodily contact with the plaintiff.

144. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

145. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

146. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR
ABUSE OF PROCESS**

147. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "146" with the same force as if alleged in full herein.

148. By the acts and/or omissions described herein, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, employed regularly issued criminal process against plaintiff compelling the performance or forbearance of prescribed acts.

149. The purpose of activating this process was with malice and/or the intent to harm the plaintiff, without any excuse or justification.

150. The defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, misused the criminal process in a perverted manner for the purpose of obtaining a collateral objective or corresponding detriment to the plaintiff which was outside the legitimate ends of

the process.

151. By the acts and/or omissions described herein, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

152. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

153. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

154. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION**

155. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "154" with the same force as if alleged in full herein.

156. By the acts and/or omissions described herein, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, without probable cause for arrest or prosecution, directly, actively, and maliciously caused a criminal proceeding to be initiated and continued against plaintiff for the purpose of harming and/or punishing the plaintiff for illegitimate reasons.

157. The plaintiff was maliciously and without probable reason or cause, inculpated in criminal actions in which he did not participate, by THE CITY OF NEW YORK.

158. The charges were lodged against the plaintiff without probable cause or

justification, and were designed to harass and intimidate the plaintiff, to cause the plaintiff to expend great sums of money for his defense, to embarrass the plaintiff in the community, and among his friends and relatives, employer, and co-employees, and to subject the plaintiff to a possible term of imprisonment.

159. The criminal proceeding ultimately resulted in a termination in plaintiff's favor.

160. The defendants' conduct constituted malicious prosecution on the part of the defendants against the plaintiff, and this malicious prosecution has caused the plaintiff to undergo extreme mental pain and anguish, humiliation, and damage to his reputation.

161. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

162. Due to the reckless, malicious, willful, wanton, and intentional nature of the foregoing and the need to deter such conduct in the future, plaintiff is entitled to exemplary and/or punitive damages against the defendants.

163. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

164. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "163" with the same force as if alleged in full herein.

165. Defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, had a duty to protect and to refrain from depriving the plaintiff of his Constitutional rights, falsely arresting the plaintiff, falsely imprisoning the plaintiff, abusing the criminal law process, maliciously prosecuting the plaintiff, and otherwise violating the plaintiff's statutory and

common law rights as guaranteed by the laws and Constitution of the State of New York.

166. By the acts and/or omissions described herein, defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, breached their duty to the plaintiff, unreasonably endangering the physical safety of the plaintiff and causing the plaintiff to fear for his physical safety.

167. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

168. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

169. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "168" with the same force as if alleged in full herein.

170. The acts and/or omissions described herein were so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.

171. Defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, acted with intent to cause and/or disregard of a substantial probability of causing severe emotional distress to plaintiff.

172. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

173. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR A NINETEENTH CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING, SUPERVISION, AND RETENTION**

174. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "173" with the same force as if alleged in full herein.

175. Defendant, THE CITY OF NEW YORK, hired, trained, supervised, and retained defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, despite their known and foreseeable propensity for the injury-causing and tortious conduct alleged herein.

176. Defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in hiring defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3.

177. Defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in training defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3.

178. Defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in supervising defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3.

179. Defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in retaining defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3.

180. Defendant, THE CITY OF NEW YORK, knew of the defendants', P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, propensity for the injury-causing and tortious conduct alleged herein.

181. Defendant, THE CITY OF NEW YORK, should have known of the propensity of defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, for the injury-causing and tortious conduct alleged herein had the defendant, THE CITY OF NEW YORK, conducted an adequate hiring, training, supervision, and retention procedure.

182. Defendant, THE CITY OF NEW YORK, failed to investigate defendants, P.O.

BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, despite knowledge of facts that would lead a reasonably prudent person to investigate these defendants.

183. Defendant, THE CITY OF NEW YORK, failed to take corrective action against defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, despite knowledge of facts that would lead a reasonably prudent person to take corrective action against these defendants.

184. Defendant, THE CITY OF NEW YORK, failed to reasonably control or monitor defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, despite knowledge of facts that would lead a reasonably prudent person to control or monitor these defendants.

185. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

186. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

**AS AND FOR AN TWENTIETH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR / VICARIOUS LIABILITY**

187. Plaintiff repeats and realleges each and every allegation contained in paragraphs "1" through "186" with the same force as if alleged in full herein.

188. Defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, acted in furtherance of and within the course and scope of their duties and functions as employees, agents, servants, representatives, and/or officers of the New York City Police Department and/or THE CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful functions as police officers.

189. Defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, acted in

furtherance of their employment with the New York City Police Department and/or THE CITY OF NEW YORK.

190. Defendants, P.O. BRIAN BAYLEY and P.O. JOHN DOE 1 through 3, acted pursuant to the customs, usages, practices, procedures, and/or rules of the New York City Police Department and/or THE CITY OF NEW YORK, all under the supervision of ranking officers of said police department.

191. As a direct and proximate result of the foregoing, plaintiff sustained injuries to his physical, mental, and emotional well-being, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment, humiliation, shame, indignity, damage to reputation, loss of income, and was otherwise damaged and injured.

192. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limitation of all other courts lower than the Supreme Court of the State of New York.

WHEREFORE, the plaintiff Fredy Llanos demands:

A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

C. Judgment awarding damages on the third cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

D. Judgment awarding damages on the fourth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

E. Judgment awarding damages on the fifth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

F. Judgment awarding damages on the sixth cause of action, in an amount exceeding the

monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

G. Judgment awarding damages on the seventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

H. Judgment awarding damages on the eighth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

I. Judgment awarding damages on the ninth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

J. Judgment awarding damages on the tenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

K. Judgment awarding damages on the eleventh cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

L. Judgment awarding damages on the twelfth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

M. Judgment awarding damages on the thirteenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

N. Judgment awarding damages on the fourteenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

O. Judgment awarding damages on the fifteenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

P. Judgment awarding damages on the sixteenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

Q. Judgment awarding damages on the seventeenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

R. Judgment awarding damages on the eighteenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

S. Judgment awarding damages on the nineteenth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

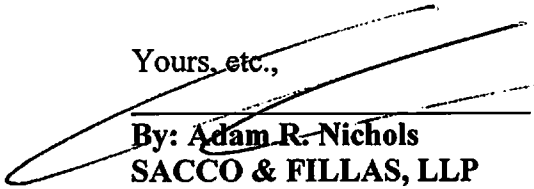
T. Judgment awarding damages on the twentieth cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

U. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

WHEREFORE, the plaintiff demands judgment awarding damages and punitive damages, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with interest and the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: Astoria, NY
March 20, 2018

Yours, etc.,


By: Adam R. Nichols
SACCO & FILLAS, LLP
Attorney for Plaintiff(s)
Fredy Llanos
31-19 Newtown Avenue
Seventh Floor
Astoria, NY 11102
(718) 746-3440
File No. 18728-17

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
FREDY LLANOS

Plaintiff(s),

-against-

ATTORNEY
VERIFICATION

SHAWN ZOUGARHI, HUFF 'N' PUFF INC, JOHN DOE 1 through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the persons who emerged from 25-83 Steinway Street, Astoria, NY 11103 and assaulted and/or battered the plaintiff at or near said location on or about April 14, 2017), THE CITY OF NEW YORK, New York City Police Department Officer ("P.O.") BRIAN BAYLEY (Tax ID No. 960219) individually and in his official capacity, and P.O. JOHN DOE 1 through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the New York City Police Department Officers who arrested and/or participated in the arrest of the plaintiff on or about April 14, 2017),

Defendant(s).

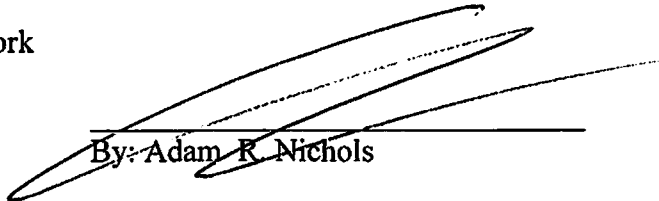
-----X
Adam R. Nichols, an attorney duly admitted to practice law in the State of New York, makes the following affirmation under the penalty of perjury:

I am of the firm of SACCO & FILLAS, LLP, the attorneys of record for the plaintiff.

I have read the foregoing Summons and Verified Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because she is not in the County of Queens, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are correspondence had with the said plaintiff, information contained in the said plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: Queens, New York
March 20, 2018
By: Adam R. Nichols

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

INDEX NO.:

FREDY LLANOS

Plaintiff(s),

-against-

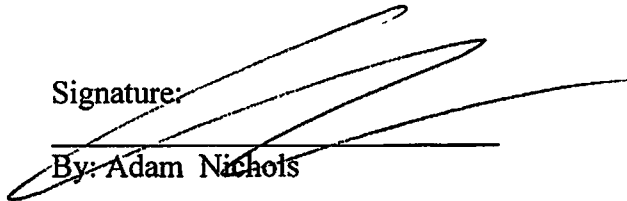
SHAWN ZOUGARHI, HUFF 'N' PUFF INC, JOHN DOE 1 through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the persons who emerged from 25-83 Steinway Street, Astoria, NY 11103 and assaulted and/or battered the plaintiff at or near said location on or about April 14, 2017), THE CITY OF NEW YORK, New York City Police Department Officer ("P.O.") BRIAN BAYLEY (Tax ID No. 960219) individually and in his official capacity, and P.O. JOHN DOE 1 through 3 (said names being fictitious and unknown to the plaintiff, the parties intended being the New York City Police Department Officers who arrested and/or participated in the arrest of the plaintiff on or about April 14, 2017),

Defendant(s).

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130 1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Queens, NY
March 20, 2018

Signature: 

By: Adam Nichols

SACCO & FILLAS, LLP

Attorneys for Plaintiff(s)

Fredy Llanos

31-19 Newtown Avenue

Seventh Floor

Astoria, New York 11102

(718) 746-3440

Our File # 18728-17